

deemed to have absconded to avoid, or to have refused to obey, the process of the Court, and that such notice of motion has been inserted in the *London Gazette* at least once in every week from the time of the first insertion thereof up to the time for which the said notice is given; and the Court being so satisfied, and the answer not having been filed, may, if it so thinks fit, order the bill to be taken *pro confesso* against such defendant either immediately, or at such time or upon such further notice as under the circumstances of the case the Court may think proper."

English
authorities on
the subject.

The practice is plainly enough laid down by the above Orders, and few doubtful cases can arise under them so as to call for decisions. Several cases have occurred in England in reference to the state of the cause with regard to the attachment; but, that being abolished, those cases are of no importance to us. There are some points, however, on which precedents may be useful. Under the 78th and 79th English Orders of 1845, which answer in many respects to the above 34th Order, the Court, when the evidence of the defendant's absconding was not quite satisfactory, refused to make an order to set down the cause *pro confesso*, but gave a day to show cause. (*Courage vs. Wardell*, 9 Jurist, 1055).

An Order to amend is an abandonment of the Order to take the bill *pro confesso*. (*Weightman vs. Powell*, 12 Jurist, 958).

A cause being set down *pro confesso* against an absconding defendant was struck out of the paper on account of Counsel's absence, and, on application of the Plaintiff alone, it was placed in the paper again. (*Harvey vs. Renon*, 12 Jurist, 445). But it is apprehended that such ex-parte application would not be treated in the same manner, if the defendants had appeared by Counsel under the above 36th Order.

Under the English Order 84, of 1845, answering to the above Order 38, the bond of the plaintiff himself may be held sufficient security, under the authority of *Lett vs.*

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